
2:00 PM **LINE 8**

25-CIV-00601

KEVIN RAMOS VS. SAN MATEO COUNTY TRANSIT DISTRICT, ET AL

KEVIN RAMOS
SAN MATEO COUNTY TRANSIT DISTRICT

PRO PER
DANIELLE K. LEWIS

PLAINTIFF'S THIRD AMENDED MOTION TO COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES
SET NO. 12

TENTATIVE RULING:

Plaintiff's Third Amended Motion to Compel Further Responses to Plaintiff's Special Interrogatories Set #12 is **DENIED**.

The parties are reminded that exhibits must be properly bookmarked. That is, "electronic exhibits must include electronic bookmarks with links to the first page of each exhibit and with bookmark titles that identify the exhibit number or letter and briefly describe the exhibit." (Cal. Rules of Court, rule 3.1110(f)(4); see also San Mateo County Superior Court, L.R. 3.3 ["Failure to bookmark exhibits to electronically filed documents may result in rejection of the party's e-filing by the Clerk of the Court or in continuance of the hearing by the Court on the related motion."].)

A. Background

In his Second Amended Complaint (SAC), plaintiff alleges that on May 17, 2024, he suffered damages from having been assaulted by a fellow passenger on a bus operated by defendant San Mateo County Transit District (SamTrans).

The court granted two anti-SLAPP motions brought against plaintiff's First Amended Complaint, one by SamTrans and defendants Steve Wagman and Marshall Rush (Order, signed on October 22, 2025), and the other by defendant Ann Lee (Order, signed on November 4, 2025), as to the second through eighth causes of action. The only remaining cause of action in the SAC, for "Premises Liability/Negligent Security," is pled solely against SamTrans.

On November 14, 2025, plaintiff served defendant with his SROGs Set No. 12, along with his SROGs Set No. 13 and Requests for Admission Set No. 5. (Supp. Lewis Decl., ¶ 18, exh. A.) Defendant responded to all three sets of discovery on December 16, 2025. (Ramos Decl., ¶ 2.) Plaintiff initially filed a motion to compel further responses on all three sets of discovery to January 8, 2026. However, the court *sua sponte* ordered the motion off-calendar and scheduled an IDC instead. (Order, January 16, 2026.) The parties did not resolve the discovery dispute at the IDC and plaintiff filed a motion to compel on March 11, 2026. Plaintiff filed a "First Amended" and Second Amended" version of the motion on March 26, 2026, and a "Third Amended" version on June 30, 2026. The court takes the moving papers filed most recently to be the operative ones and disregards those filed earlier.

The court scheduled a second IDC to discuss plaintiff's SROGs Set No. 13 and RFAs Set No. 5 for February 26, 2026, and a third IDC for SROGs Set No. 12 and plaintiff's Form Interrogatories Set No. 2, for March 16, 2026. However, the discussions at the February 26, 2026 IDC covered all four motions and the later hearing was vacated. (Minute Order, February 26, 2026.) The Commissioner stated that:

it appears that the discovery herein substantially relates to Plaintiff hoping to learn how Defendant went about preparing its prior re[sp]onses, what steps it took to search for certain requested documents or items, and so forth. Plaintiff's stated overarching goal in pursuing these lines of inquiry appears to be to find grounds to bring a motion for sanctions against Defendant for Plaintiff's belief that Defendant has engaged in abuse of the discovery process. Plaintiff's belief appears to have origins in his efforts to discover whether any incident reports or audio recordings existed as to the incident which is the underlying subject of this lawsuit.

(Minute Order, at pp.1-2.) The Commissioner noted that "Plaintiff indicated at the IDC that he would seek issue and/or terminating sanctions" (*id.*, at p. 2), but that "Judge Healy declined to impose monetary sanctions upon Defendant" in ruling upon plaintiff's earlier motion to compel further responses to his Request for Production (RFP), Set One (*id.*, at p. 3). (*See* Minute Order, December 17, 2025.) Accordingly, the Commissioner stated that plaintiff's further pursuit of motions for issue or terminating sanctions "would be without merit." (Minute Order, February 26, 2026, at p. 3.)

Plaintiff brings the instant Motion seeking to compel defendant to respond further to the 66 outstanding special interrogatories of the 68 special interrogatories in SROGS Set No. 12.

Plaintiff disputes the Commissioner's characterization that his discovery requests sought information regarding how SamTrans performed a diligent search and reasonable inquiry in its response to his RFP Set No. 1. (Ramos Decl., ¶ 10.) However, a review of the 66 special interrogatories to which plaintiff seeks further responses demonstrates that they are aimed at obtaining information regarding defendant's efforts to respond to plaintiff's RFP Set No. 1. Indeed, plaintiff himself acknowledges this: "PLAINTIFF's special interrogatories generally span inquiries about DEFENDANT's efforts to locate & produce the records requested in PLAINTIFF's Request for Production Set #1." (MPA, at p. 6:11-13.)

Defendant argues that the 68 special interrogatories in SROGs Set No. 12 alone are nearly double the limit of 35 for which no supporting declaration justifying the requests is needed, and that plaintiff has served over 360 special interrogatories on defendant in this matter. (Opp., at p. 1:17-28.) Defendant further contends that plaintiff's declaration justifying additional interrogatories fails to comply with the requirements of Code of Civil Procedure, section 2030.050, subdivision (b). Defendant's initial supporting declaration stated that a copy of plaintiff's SROGs Set No. 12 is attached as Exhibit A to the Declaration of Danielle Lewis. (Lewis Decl., ¶ 4.) However, defendant apparently inadvertently failed to attached Exhibit A – and all of its other exhibits – to that declaration.

Plaintiff's moving papers did not directly address his supporting declaration but disputed defendant's claim that he has propounded over 360 special interrogatories. Plaintiff claims he only propounded 26 interrogatories prior to serving SROGs Set No. 12, which includes 68 special interrogatories. However, plaintiff acknowledges that he served SROGs Sets Nos. 13 and 14 — which include 31 and 4 special interrogatories, respectively — concurrently with SROGs Set No. 12. This court heard plaintiff's motion to compel further responses to the four interrogatories in SROGs Set No. 14 on July 15, 2026, and plaintiff has acknowledged in his reply here that he is not seeking to compel further answers to SROGs No. 13. Plaintiff did not address any special interrogatories served after SROGs Sets Nos. 12-14.

The number of interrogatories propounded by plaintiff and the sufficiency of his declaration justifying additional discovery relevant to this motion. In their initial papers, neither party properly submitted evidence supporting their arguments on these issues. Accordingly, the hearing of this motion was continued from July 22, 2026 to August 12, 2026 because the court lacked sufficient evidence to rule. The parties were ordered to do the following:

- No later than July 29, 2026, defendant shall file a supplemental declaration with the exhibits inadvertently omitted from its previous supporting declaration, along with any declaratory statements or exhibits evidencing the number of special interrogatories served by plaintiff in this matter. Defendant may concurrently file a supplemental opposition brief, not to exceed ten pages in length, addressing the sufficiency of plaintiff's SROGs Set No. 12 declaration justifying additional discovery and the totality of special interrogatories propounded by plaintiff on defendant in this matter.
- No later than August 5, 2026, plaintiff may likewise file a supplemental reply brief not to exceed ten pages and a supplemental declaration addressing those same issues.

On July 29, and August 5, 2026, respectively, the parties filed their supplemental papers. (Also on August 5, 2026, plaintiff filed amended supplemental papers, but did not explain what was amended.)

Defendant's supplemental response demonstrates that plaintiff has served, and withdrawn, multiple sets of discovery requests and has filed multiple motions to compel further responses. On March 18, 2025, plaintiff served 26 interrogatories on defendant as part of SROGs Set No. 1. (Supp. Lewis Decl., filed July 29, 2026, ¶ 18.) Between November 7 and November 11, 2025, plaintiff served SROGs Sets Nos. 6, 7, 8, 9, 10, and 11, which collectively included 141 interrogatories. (*Ibid.*) On November 14, 2025, plaintiff concurrently served SROGs Sets Nos. 12 and 13, which included an additional 68 and 31 interrogatories, respectively. (*Ibid.* [plaintiff is not pursuing a motion to compel additional responses to SROGs Set No. 13; see Plaintiff's Supp. Reply, at p. 3:17].) Thus, before plaintiff filed this motion to compel, defendant had responded to 26 special interrogatories in SROGs Set No. 1 and 31 special interrogatories from SROGs Set No. 13 — at total of 57 special interrogatories. That does not include the 141 additional interrogatories that plaintiff propounded through SROGs Sets Nos. 6-11, then later withdrew.

In her Supplemental Declaration, filed July 29, 2026, Ms. Lewis set out a chart showing the special interrogatories and requests for admission that were served, amended, and in some instances, withdrawn. The chart is reproduced below (the exhibit numbers refer to exhibits to Ms. Lewis's Supplemental Declaration):

Discovery	#	Total	Date	Withdrawn?	Declaration States	Exhibit
SROG 1	26	26	3/18/25	No	No declaration.	4
SROG 6	8		11/7/25	Yes	No declaration.	
SROG 7	31		11/7/25	Yes	"at least 26 SROGs."	
SROG 8	17		11/13/25	Yes	"at least 26 SROGs."	
SROG 9	31		11/13/25	Yes	"at least 26 SROGs."	
SROG 10	23		11/14/25	Yes	"at least 26 SROGs."	
SROG 11	31		11/14/25	Yes	"at least 26 SROGs."	
SROG 12	68	94	11/14/25	No	"at least 26 SROGs."	5
SROG 13	31	125	11/14/25	No	"at least 26 SROGs."	6
SROG 14	4	129	12/18/25	No	"at least 26 SROGs."	7
SROG 15	99		12/20/25	Yes	"at least 26 SROGs."	
SROG 16	3	132	1/21/26	No	"at least 26 SROGs."	8
SROG 18	4	136	1/28/26	No	"at least 26 SROGs."	9
SROG 19	31	167	1/31/26	No	"at least 26 SROGs."	10
SROG 20	47	214	2/1/26	No	"at least 26 SROGs."	11
SROG 21	8	222	3/16/26	No	"at least 217 SROGs."	12
SROG 22	12	234	3/16/26	No	"at least 225 SROGs."	13
SROG 23	25	259	4/3/26	No	"at least 237 SROGs."	14
SROG 24	99	358	4/3/26	No	"at least 262 SROGs."	15
SROG 25	25	383	5/6/26	No	"at least 262 SROGs."	16

RFA 2	16		11/7/25	Yes	No declaration.	
RFA 3	32		11/13/25	Yes	No declaration.	
RFA 4	40		11/14/25	Yes	No declaration.	
RFA 5	52	52	11/14/25	No	“at least 0 RFAs.”	17
RFA 6	4	56	4/3/26	No	“at least 52 RFAs.”	18

B. Legal Standard

Upon receipt of a response to special interrogatories, a propounding party may move for an order if the party deems (1) answers are evasive or incomplete; (2) the responding party’s referral to documents is unwarranted or inadequate; or (3) any objections are without merit or too general. (Code Civ. Proc., § 2030.300, subd. (a).)

As a threshold issue here, defendant argues that plaintiff has propounded more than 35 special interrogatories in this action and failed to provide sufficient justification for further interrogatories as required by statute.

A party may propound no more than 35 specially prepared interrogatories without attaching a declaration satisfying Code of Civil Procedure section 2030.040. (Code Civ. Proc., § 2030.030, subd (b).) The declaration must contain, among other things:

- (1) A statement that the declarant has considered the availability of the factors specified in section 2030.040 and that none of the alternative methods for obtaining the information is more convenient, less burdensome, or less expensive;
- (2) The total number of interrogatories previously propounded;
- (3) The specific statutory factor(s) that justify the additional interrogatories; and
- (4) An explanation of why the number of interrogatories is warranted.

(Code Civ. Proc., §§ 2030.040, 2030.050.) Where the declaration fails to meet these requirements, the excess interrogatories need not be answered. (Code Civ. Proc., §§ 2030.040, subd. (b); 2030.090, subd. (b).)

C. Discussion

While the scope of permissible discovery is broad, it is not unlimited. The Legislature has imposed limits on the number of special interrogatories that may be propounded. (Code Civ. Proc., § 2030.030, subd. (a)(1), (b).) Additional special interrogatories may be authorized, if the

propounding party can demonstrate a specific need for additional discovery. Plaintiff has not demonstrated such a need.

Plaintiff's declaration for additional discovery in support of SROGs Set No. 12, states in relevant part:

According to my knowledge at the time of writing this, I have previously propounded a total of at least 26 interrogatories to this party, of which at least 26 interrogatories were not official form interrogatories.

* * *

This set of interrogatories contains a total of 68 specially prepared interrogatories.

* * *

This number of questions is warranted under Section 2030.040 of the Code of Civil Procedure because “ The complexity or the quantity of the existing and potential issues in the particular case. “ , “ The financial burden on a party entailed in conducting the discovery by oral deposition. “ and “ The expedience of using this method of discovery to provide to the responding party the opportunity to conduct an inquiry, investigation, or search of files or records to supply the information sought. “. There is complexity and quantity because there are dozens of potential witnesses and dozens of potential locations of relevant evidence. There would be a greater financial burden on me if this discovery were conducted instead by oral deposition because I have not yet obtained enough details to perform a possibly less expensive but useful deposition. Using these special interrogatories will be more expedient for both me and the responding party because they already know where all of the answers to these interrogatories are. In these special interrogatories, I am attempting to determine which witnesses have and have not been found, and I am attempting to determine which locations have and have not been searched. Thus far, it is unclear what the defendant San Mateo County Transit District has done regarding investigating because they have said that no evidence exists despite evidence existing such as the audio recording of the bus driver reporting the incident to the defendant San Mateo County Transit District.

(Supp. Lewis Decl., exh. A [plaintiff's SROGs Set No. 12, Declaration for Additional Discovery, at pp. 24-25, ¶¶ 4, 5, 8.]

Plaintiffs supporting declaration states that he served “at least 26” special interrogatories prior to SROGs Set No. 12. (Supp. Lewis Decl., exh. A [plaintiff's SROGs Set No. 12, Declaration for Additional Discovery, at p. 24, ¶ 4.]) This does not adequately acknowledge the 141 special interrogatories served, but later withdrawn, in SROGs Sets Nos. 6-11. Plaintiff's declaration further states that SROGs Set No. 12 contains 68 interrogatories. (*Id.*, at p. 24, ¶ 5.) However, the declaration does not mention the 31 interrogatories propounded concurrently with SROGs Set No. 13. Defendant argues that by failing to include withdrawn interrogatories and interrogatories propounded concurrently with SROGS 12, plaintiff's declaration “does not

present and accurate picture of the cumulative discovery burden” at the time the interrogatories were served.

However, more importantly, plaintiff’s declaration fails to provide a sufficient justification for the additional discovery sought.

A declaration justifying additional discovery must support why any of the following justifications is applicable to the lawsuit: (1) the complexity or the quantity of the existing and potential issues in the particular case; (2) the financial burden on a party entailed in conducting the discovery by oral deposition; (3) the expedience of using this method of discovery to provide to the responding party the opportunity to conduct an inquiry, investigation, or search of files or records to supply the information sought. (Code Civ. Proc., §§ 2030.030, 2030.040, 2030.050.)

This case is not complex. Plaintiff alleges that defendant failed to protect him from assault from a single individual while they were traveling on a bus operated by SamTrans. (See *Lopez v. Southern Cal. Rapid Transit Dist.* (1985) 40 Cal.3d 780, 785-786; *City and County of San Francisco v. Superior Court* (1994) 31 Cal.App.4th 45; Civ. Code, § 2100.)

Plaintiff contends that “there are dozens of potential witnesses and dozens of potential locations of relevant evidence.” Plaintiff fails to explain why the allegation that there may be dozens of potential witnesses establishes complex issues in this case necessitating additional discovery.

However, plaintiff’s special interrogatories in SROGs Set No. 12 are not directed at identifying witnesses to the alleged incident on the bus. For example, the first 15 special interrogatories in SROGs Set No. 12 are addressed to identifying who wrote which “part of any of the responses” or who “investigated” one or more of the requests in plaintiff’s RFPs. (See Lewis Supp. Decl., exh. B, beginning at p. 34 of 528.) SROGs Nos. 16-20 seek information about “all” bus drivers and busses driving routes along El Camino Real on May 17, 2024. SROGS 21-30 seek information about defendant’s interviews, with “all bus drivers” after the alleged incident, including in connection with responding to plaintiff’s RFPs. Such information is protected as at least qualified attorney work product. (*Coito v. Superior Court* (2012) 54 Cal.4th 480, 496-497 (*Coito*) [“witness statements obtained as a result of interviews conducted by an attorney, or by an attorney’s agent at the attorney’s behest, constitute work product a witness statement obtained through an attorney-directed interview is, as a matter of law, entitled to at least qualified work product protection.”]; *Nacht & Lewis, Inc. v. Superior Court* (1996) 47 Cal.App.4th 214, 218.) SROGs 31-41 similarly seek the identities of “all bus driver supervisors” and information about defendant’s post-incident interviews with them.

As to the financial burden, plaintiff states that he “has not yet obtained enough details to perform a possible less expensive but useful deposition.” This fails to establish a clear financial burden justifying additional discovery and also fails to address why other discovery methods cannot be utilized in lieu of special interrogatories. And as to expedience, plaintiff declares that defendant “already know[s] where all the answers to these interrogatories are.” Defendant

responds that plaintiff lacks foundation and personal knowledge to assert that. Further, plaintiff fails to address why other discovery methods would not be more expedient.

In sum, plaintiff has not justified his request to serve more than 35 special interrogatories. Accordingly, plaintiff's motion to compel further responses to SROGs Set No. 12 is **DENIED** for failure to sufficiently justify the necessity of further discovery beyond the limit set in Code of Civil Procedure, section 2030.030, subdivision (b).

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, defendant's counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

02:00 PM **LINE 9**

25-CIV-09639

ADERBAL OLIVEIRA JR. VS. DENIZE OLIVEIRA

ADERBAL OLIVEIRA JR.
DENIZE OLIVEIRA

SCOTT TALKOV

PLAINTIFF'S MOTION FOR 1) DEFAULT INTERLOCUTORY JUDGMENT OF PARTITION AND 2) APPOINTMENT OF REFEREE

TENTATIVE RULING:

The court **GRANTS** plaintiff Aderbal Oliveira's "Motion for (1) Default Interlocutory Judgment of Partition; and (2) Appointment of Referee," filed March 17, 2026. The court has a few questions regarding plaintiff's "[PROPOSED] DEFAULT INTERLOCUTORY JUDGMENT OF PARTITION AND APPOINTMENT OF REFEREE," which was lodged with the court on March 17, 2026. Plaintiff's counsel is **ORDERED TO APPEAR** at the hearing on August 12, 2026 at 2:00 p.m. to address the issues identified below.

This is a partition action. The evidence submitted with this Motion indicates that the parties, who were formerly married, each own a 50% interest in the property, a single-family residence located at 1749 Shoreview Ave, San Mateo, California (the Property). (Williamson Decl., ¶¶ 2-3; exh. 1 [Grant Deed]; exh. 4 [Title Report].) Plaintiff seeks to have the Property partitioned, thereby ending the co-ownership relationship. Defendant appears to currently reside in the Property.

On May 12, 2017, a divorce judgment was entered by this court in Case No. FAM0115683 (Divorce Action), providing that "[in] June of 2024, the house will be placed on the market for sale." According to plaintiff, since that time, the Property has not been listed for sale, and no agreement has been reached to do so. Defendant was personally served with the Summons and Complaint in this case, but has defaulted. (Moving papers, Exhibits 7-8.)

The court intends to **GRANT** plaintiff's request for entry of an interlocutory judgment of partition, and to appoint attorney Matthew Taylor to serve as Partition Referee. Before doing so, however, the court requests that plaintiff's counsel (or Mr. Taylor) appear to discuss the following questions about the "[PROPOSED] DEFAULT INTERLOCUTORY JUDGMENT OF PARTITION AND APPOINTMENT OF REFEREE":

- The proposed order would grant the Referee the power and discretion to decide the appropriate manner of partition, which is not usually done. The Motion indicates that a partition in kind is not practicable here, and that a partition by sale is the most likely outcome. But the Motion does not ask the court to order a partition sale. Instead, it would provide the Referee with the discretion to decide the manner of partition. Normally, the court, not a referee, decides the manner of partition. Code of Civil Procedure, section 873.010, subdivision (a) states that the court appoints a referee to "divide or sell the property *as ordered by the court*." Counsel shall address why the interlocutory judgment